

Dinesh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 February 2020 · Writ-C No. 4507 of 2020 · Writ-C No. 4507 of 2020 · **Writ disposed; EE to pass speaking final order on objection; s.127 left open; coercive recovery stayed eight weeks.**

HEADNOTE

A writ to quash a recovery citation of Rs. 1,00,629 was disposed without examining the demand or the alleged Supply Code, 2005 breach. The consumer was directed to appear before the Executive Engineer with objection and evidence; the Engineer to pass a speaking final order within four weeks; coercive action stayed for eight weeks or until the objection is decided, whichever is earlier; and a Section 127 appeal left open if the final order is adverse. Failure to appear revives the demand automatically.

FACTUAL SUMMARY

Dinesh filed Writ-C No. 4507 of 2020 in the Allahabad High Court seeking certiorari to quash a recovery citation dated 21 November 2019 issued by respondent no. 4 for Rs. 1,00,629. He contended that the respondents were taking coercive recovery action without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The demand and the alleged Code breach were not tried on the merits in the writ.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order on recovery objection; Section 127 appeal thereafter

HOLDING

The Court did not quash the recovery citation. It directed the petitioner to appear before the Executive Engineer with his objection and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection (whichever earlier), and left it open, if the petitioner is aggrieved by that final order, to appeal under Section 127 of the Electricity Act, 2003. If he does not appear and object, the demand notice revives automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objection to the recovery citation, the Court left a Section 127 appeal open if that order is adverse, and did not decide the demand on merits in writ. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court treated the Executive Engineer's forthcoming speaking final order as the decision against which, if adverse, the consumer may appeal under Section 127 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF 21.11.2019 FOR RS. 1,00,629 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the demand or the alleged Code breach on merits; it directed a speaking final order by the Executive Engineer. ¶ 1